WELLS FARGO BANK v. SCHULTZ

21CF13622

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction collections case. Before the Court is plaintiff's statutory motion for judgment on the pleadings directed at *both* the Complaint filed 09/28/21 and the Answer filed 01/18/22. The motion includes a reasonable attempt – under the circumstances – to satisfy the meet and confer requirement set forth in CCP §439.

A plaintiff moving for judgment on the pleadings must demonstrate that (1) the complaint states facts sufficient to constitute a viable cause of action against the defendant and (2) the answer does *not* state facts sufficient to constitute a defense to that cause of action. (CCP §438(c); see *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735; *Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321.) The grounds for the motion must appear on face of pleadings (the complaint and the answer), or from facts judicially noticeable. (CCP §438(d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759; *Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 186-187.) A court passing on the legal sufficiency of a pleading may also go outside the pleadings for the limited purpose of considering a party's indisputable sworn discovery responses so long as the hearing does not cross the line into an incomplete evidentiary hearing. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 716; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

Reference is first made to the operative complaint. Plaintiff alleges two causes of action: breach of written contract; and common counts. Plaintiff attached a copy of the written contract to the complaint. Within the second cause of action for common counts, there are three separate counts: open book, account stated and money had. The complaint does not attach or incorporate any papers demonstrating acceptance of the card, use of the card, billing statements, or notices of default. Although the complaint shows an indebtedness, it does not include *facts* connecting that debt specifically to plaintiff. (See *Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460; *Kawasho Internat., U.S.A. Inc. v. Lakewood Pipe Service, Inc.* (1983) 152 Cal.App.3d 785, 793; *Gleason v. Klamer* (1980) 103 Cal.App.3d 782, 786; *H. Russell Taylor's Fire Prevention Service, Inc. v. Coca Cola Bottling Corp.* (1979) 99 Cal.App.3d 711, 726.) Moreover, where the party seeking money has a contractual obligation that is still executory, he cannot plead a cause of action for money had (*Ferrero v. Citizens of National Trust and Savings Bank of Los Angeles* (1955) 44 Cal.2d 401, 409), and there is no averment that the agreement was rescinded or otherwise no longer executory.

On to defendant's answer, filed 01/18/22, which is on an old Judicial Council form. It automatically includes a general denial of the allegations. There is a single "affirmative defense" listed in the answer, and that is for "fraud." There are no facts alleged to support that "defense" or how defendant was allegedly defrauded by plaintiff.

Based solely on the pleadings, plaintiff is not entitled to judgment. However, plaintiff further asks this Court to consider the recently-admitted RFAs. On 07/22/22, this court granted a motion by plaintiff to have deemed admitted the following matters: (1) defendant had an account with plaintiff pursuant to the written contract attached to the complaint, (2) defendant received account statements, (3) defendant had a balance owing on the account, and (4) defendant did not pay the balance. Although matter admitted in response to an RFA is preclusively established against the party making the admission (and therefore something a court can consider on a pleading motion), an RFA response is preclusive only to the extent required by a literal reading of the request. (*Murillo v. Superior Court* (2006) 143 Cal.App.4th 730, 736; *Burch v. Gombos* (2000) 82 Cal.App.4th 352, 359.) There is no admission by plaintiff that he used the card to make purchases reflected in the balance due, nor are there any admissions relating the defendant's "defense" of "fraud." Nevertheless, in light of defendant's complete silence since filing the answer, including a failure to oppose the motion to deem admitted or the current MJOP, this Court concludes that the pleadings sufficiently demonstrate a meritorious claim for relief and a substantively unmeritorious defense thereto.

Motion for judgment on the pleadings is GRANTED, WITH twenty days leave to amend *the answer* to properly state an affirmative defense, if any. (See CCP §438(h)(1).) Leave to amend is routinely granted when the original pleading is found wanting, even if the proponent of the pleading has not demonstrated an ability to cure. If no first amended answer is filed within the time allowed, plaintiff may appear by ex parte application to have judgment entered.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.